OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Steve Prothero asks who on Council's Finance panel owns property in Nowra CBD

Sent 4 August 2026 · To Shoalhaven City Council · Response requested by 25 August 2026

An Open Letter to the Chief Executive Officer, Andrew Constance

A one-page disclosure that would settle a simple question about the Finance and Infrastructure Review Panel

Dear Mr Constance,

I am writing about a question that ought to take a resident ten minutes to answer and currently cannot be answered at all.

Council's Finance and Infrastructure Review Panel advises on the budget, on major projects, and on the disposal of public assets. Its counsel of conservative budgeting is now cited in the chamber to justify decisions that are costing this community land and services. Nine people vote on it. The reasonable question is whether any of them holds an interest in property in the Nowra CBD — or, for that matter, in any other part of the city whose value council decisions move.

I have spent a day on the public record trying to answer it, and I want to say at the outset what I found: nothing.

Nothing in any published document links any member of that panel to property in the Nowra CBD, and nothing in this letter should be read as an allegation against any of them. I make none.

But "nothing found" is not the same as "nothing there," and the reason I cannot say more is a set of choices council has made about what it publishes. Those choices protect nobody. They leave a member of your panel with no way to demonstrate they are clean, and they leave a resident with no way to check.

Here is what stands in the way.

Council publishes its pecuniary interest returns, and deserves credit for that. But every published file is titled "Redacted," and the street address column in the real property section is empty. The Mayor's 2024–25 return discloses an interest in real property with the nature of that interest recorded as "Lease" and no address. Cr Tribe's discloses two, recorded as "Owner" and "Owner (self-managed super fund)," with no addresses. The register establishes that interests exist and withholds where they are. It therefore cannot answer the question either way, for anybody.

Three of the four councillor returns are photographs of handwritten forms, one of them an image-only scan containing no readable text.

And the five community representatives — the members whose sole claim on public confidence is the word independent — file no returns at all. None of them appears anywhere in the register.

I would ask you to answer the following on the record.

1. Will council publish, for each of the nine voting members of the Finance and Infrastructure Review Panel, a short written statement answering one question: do you, your spouse or partner, or any company or trust in which you have an interest, hold any interest in land or business premises in the Nowra CBD?

1. Who decided that the street address column in the real property section of published returns would be blanked, when was that decided, and under what provision or public interest test? IPC Information Access Guideline 1 offers the redaction of a signature and a residential address as its example of a fair edit. It does not require a council to remove every parcel of land from every return.

1. Will council publish, at minimum, the suburb of each real property interest already disclosed on the returns it has already put online? A suburb identifies no one's home and answers the question that matters.

1. Has council ever resolved under section 441(3) of the Local Government Act 1993 to declare Finance and Infrastructure Review Panel community representatives "designated persons" required to lodge returns of interest? If it has, where are their returns? If it has not, what conflict of interest regime applies to five unelected people advising council on the disposal of public assets, and who enforces it?

1. Will council publish the "self-assessment statements declaring they are fit and proper applicants" that council's own media release says the new appointees submitted?

1. Will council publish the panel's terms of reference, agendas and minutes as a standing series on its website, as it does for other committees, rather than as occasional attachments to unrelated reports?

1. Which councillor now holds the Ward 1 seat on the panel following Cr Cox's resignation? Item CL26.9 in January named Crs Clancy, Norris and Steele as the eligible candidates. Council's own minutes portal returns an error on every 2026 minutes file I have attempted, which is a separate problem I would also ask you to fix.

1. **Were any conflict of interest declarations made by members of the selection panel — yourself, the Mayor, the Chief Financial Officer and a director — before the assessment of applicants began, and will you publish them? The minutes record that you and the Mayor each declared a recommended appointee was personally known to you. Residents cannot see which appointee, or what was done about it.**

None of this requires a law change, an inquiry, or a formal access application. Most of it is one page on council's website and a fortnight's work.

I would rather publish your answers than publish the fact that you did not give any. I will print a response in full and unedited, and I extend the same offer to any member of the panel who would like their own position on the record in their own words.

I am also happy to do this the other way, if you prefer: 45 minutes, on the record, at a time that suits you.

Yours sincerely,

Steve Prothero

Eye on Shoalhaven Council
steveprothero.substack.com
